



Income Tax Department

Ministry of Finance, Government of India

Power of Board to make safe harbour rules.

167. (1) The determination of—

- (a) income referred to in section 9(2); or
- (b) arm's length price under section 165 or 166,

shall be subject to safe harbour rules.

(2) For the purposes of sub-section (1), the Board may make rules for safe harbour.

(3) For the purposes of this section, "safe harbour" means circumstances in which the income-tax authorities shall accept,—

- (a) the transfer price; or
- (b) the income, deemed to accrue or arise under section 9(2),

declared by the assessee.

